

Authorised Version
Building Regulations 2018
S.R. No. 38/2018

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Authorised Version

STATUTORY RULES 2018

S.R. No. 38/2018

Building Act 1993

Building Regulations 2018

The Governor in Council makes the following Regulations:

Dated: 27 March 2018

Responsible Minister:

RICHARD WYNNE
Minister for Planning

ANDREW ROBINSON
Clerk of the Executive Council

Part 1—Preliminary

Division 1—Introduction

1 Objectives

The objectives of these Regulations are—

- (a) to remake with amendments the regulations which control the design, construction and use of buildings and places of public entertainment; and
- (b) to prescribe standards for the construction and demolition of buildings; and
- (c) to prescribe standards of safety for places of public entertainment; and
- (d) to regulate matters relating to the use and maintenance of buildings and places of public entertainment; and

- (e) to prescribe requirements for the design and siting of single dwellings and associated buildings; and
- (f) to prescribe standards and matters relating to the maintenance of fire safety and safety measures; and
- (g) to prescribe requirements for swimming pool and spa safety; and
- (h) to provide for matters relating to the accreditation of building products, construction methods, designs, components and systems connected with building work; and
- (i) to prescribe qualifications and provide for other matters relating to registration of building practitioners; and
- (j) to prescribe fees in relation to matters before the Building Appeals Board, the Authority and the Building Regulations Advisory Committee; and
- (k) to provide for other matters for the purposes of the **Building Act 1993**.

2 Authorising provisions

These Regulations are made under sections 7, 9, 15A, 261 and 262 of, and Schedule 1 to, the **Building Act 1993**.

3 Commencement

These Regulations come into operation on 2 June 2018.

4 Revocations

The Regulations listed in Schedule 1 are **revoked**.

Division 2—Definitions and interpretation

5 Definitions

(1) In these Regulations—

allotment means land that can be disposed of separately under section 8A of the **Sale of Land Act 1962** without being subdivided;

approved means approved by the relevant building surveyor;

approved building envelope means documented design parameters that deal with a siting matter regulated under Part 5 that—

(a) are specified in a planning permit for the subdivision of land granted under the **Planning and Environment Act 1987** on or after 1 July 1994; and

(b) are—

(i) specified in an agreement made under section 173 of the **Planning and Environment Act 1987** that is recorded on the Register under the **Transfer of Land Act 1958** in relation to the relevant allotment; or

(ii) shown as restrictions on the plan of subdivision of land certified under the **Subdivision Act 1988** that is recorded on the Register under the **Transfer of Land Act 1958** in relation to the relevant allotment;

architectural feature means eaves, brackets, cornices, light fixtures, coping, fascia, windowsills and similar parts of a building that are for decorative purposes and which can be removed from a building or structure without adversely affecting that building's structural integrity;

AS 1851—2012 means AS 1851—2012 Routine service of fire protection systems and equipment published on 3 December 2012, as in force or as issued from time to time;

AS 3959 means AS 3959—2009 Construction of buildings in bushfire-prone areas published on 10 March 2009, as incorporated for the time being by the BCA;

BCA means the Building Code of Australia;

BCA Volume One means Volume One of the National Construction Code Series including any variations or additions in the Appendix Victoria set out in the Appendices to that Volume;

BCA Volume Two means Volume Two of the National Construction Code Series including any Victoria additions set out in Appendix A to that Volume;

bushfire attack level has the same meaning as in AS 3959;

certificate of final inspection means a certificate issued under section 38 of the Act;

clear to the sky in relation to an area means an unroofed area or an area roofed with a material that transmits at least 90% of light;

combined allotment means two or more adjoining allotments or an allotment and adjoining land;

commencement date in relation to building work has the same meaning as in regulation 55(1);

completion date in relation to building work has the same meaning as in regulation 55(2);

declared road means a freeway or an arterial road, both within the meaning of the **Road Management Act 2004**;

designated land means any land declared to be designated land under Part 10 of the **Water Act 1989**;

designated special area means—

- (a) an area liable to flooding; or
- (b) an area designated under regulation 150 as an area in which buildings are likely to be subject to attack by termites; or
- (c) an area designated under regulation 152 as likely to be subject to significant snowfalls; or
- (d) designated land; or
- (e) designated works;

designated works means any works declared to be designated works under Part 10 of the **Water Act 1989**;

drainage authority in relation to a district means the Authority to which Division 3 of Part 10 of the **Water Act 1989** applies in relation to that district;

electricity supply authority has the same meaning as ***electricity corporation*** has in section 85 of the **Electricity Industry Act 2000**;

essential safety measure has the same meaning as it has in regulation 214;

farm land has the same meaning as it has in section 2(1) of the **Valuation of Land Act 1960**;

fence includes—

- (a) a screen; or
- (b) a structure similar to a fence;

fire performance requirement means—

- (a) performance requirement BP1.1, DP2, DP3, DP4 or DP6 of the BCA Volume One (to the extent that it relates to fire safety); or
- (b) performance requirement CP1, CP2, CP3, CP4, CP5, CP6, CP7, CP8, CP9, DP5, EP1.1, EP1.2, EP1.3, EP1.4, EP1.5, EP1.6, EP2.1 or EP2.2 of the BCA Volume One; or
- (c) performance requirement P2.1.1, P2.3.1 or P2.3.2 of the BCA Volume Two (to the extent that it relates to fire safety for a Class 1b building or a Class 10 building not associated with a Class 1a building);

fire safety engineer means a registered building practitioner in the category of engineer, class of engineer (fire safety);

floodplain management authority in relation to a district means an Authority or Minister to which Division 4 of Part 10 of the **Water Act 1989** applies in relation to that district;

Form means a form in Schedule 4;

gas supply authority means—

- (a) in relation to an area served by a reticulated gas supply, a gas company within the meaning of the **Gas Safety Act 1997**; and
- (b) in relation to pipelines to which the **Pipelines Act 2005** applies, the Minister responsible for the administration of that Act;

height in relation to—

- (a) a building (other than a wall or fence) at any point, means the vertical distance between natural ground level and the top of the roof covering; and
- (b) a wall at any point, means the vertical distance between the natural ground level at the base of the wall and the point at which the outer wall intersects the plane of the top of the roof covering or the top of the parapet, whichever is higher; and
- (c) a fence at any point, means the vertical distance between the natural ground level at the base of the fence and the top of the fence;

Keeper of Public Records means the Keeper of Public Records within the meaning of the **Public Records Act 1973**;

maintenance determination has the same meaning as it has in regulation 214;

maintenance schedule has the same meaning as it has in regulation 214;

medium street means a street that is more than 6 m in width but not exceeding 10 m in width;

narrow street means a street that is 6 m or less in width;

north-facing habitable room window means a window of a habitable room that has an axis perpendicular to its surface oriented true north 20° west to true north 30° east;

pergola means an open structure that is unroofed but may have a covering of open weave permeable material;

planning permit means a planning permit granted under the **Planning and Environment Act 1987**;

planning scheme means a planning scheme approved under the **Planning and Environment Act 1987** as in force from time to time;

private open space means—

- (a) an unroofed area of land; or
- (b) a deck, terrace, patio, balcony, pergola, verandah, gazebo, swimming pool or spa;

recreational private open space means any part of a private open space on an allotment—

- (a) which is—
 - (i) at the side or rear of an existing dwelling on the allotment; or
 - (ii) within the front setback of an existing dwelling on the allotment and which is screened for at least 90% of its perimeter by a wall, fence or other barrier that is at least 1·5 m high and that has no more than 25% of its area open; and

- (b) which is primarily intended for outdoor recreation activities;

septic tank system has the same meaning as it has in section 53J(1) of the **Environment Protection Act 1970**;

service authority means any of the following—

- (a) a council;
- (b) a drainage authority;
- (c) an electricity supply authority;
- (d) a gas supply authority;
- (e) a sewerage authority;
- (f) a water supply authority;

setback, from a boundary or building, means a horizontal distance from that boundary or building;

sewerage authority in relation to a sewerage district under the **Water Act 1989** means the Authority for that sewerage district under that Act;

site coverage in relation to an allotment means that part of the allotment, which is covered by buildings, expressed as a percentage of the area of the allotment;

street includes road, highway, carriageway, lane, footway, square, court, alley and right of way;

street alignment means the line between a street and an allotment;

the Act means the **Building Act 1993**;

water supply authority in relation to a water district under the **Water Act 1989** means the Authority for that water district under that Act;

wide street is a street that is more than 10 m in width.

- (2) For the purposes of subregulation (1), land is in an ***area liable to flooding*** if—
- (a) by or under the **Water Act 1989** it is determined as being liable to flooding (however expressed); or
 - (b) it is identified in a planning scheme under the **Planning and Environment Act 1987** as being in an area liable to flooding (however expressed); or
 - (c) it is described on a certified or sealed plan of subdivision or plan of strata subdivision or plan of cluster subdivision (as the case requires) as being liable to flooding (however expressed); or
 - (d) it is designated by the relevant council as likely to be flooded by waters from—
 - (i) a ***waterway***, as defined in section 3(1) of the **Water Act 1989**; or
 - (ii) any land upon which water concentrates or upon or over which surface water usually or occasionally flows (whether in a defined channel or otherwise) including land affected by flow from a drainage system.
- (3) For the purposes of subregulation (1), the ***width*** of a street must take into account the accumulative width of all parts of a street including, for example, footways and roads.

6 Interpretation

If a provision of any document applied, adopted or incorporated by, or referred to in, these Regulations is inconsistent with any provision in these Regulations, the provision in these Regulations prevails.

7 Numerical values

The numerical values prescribed in these Regulations must be applied subject to tolerances according to any appropriate code, standard, rule, specification or provision adopted by reference in these Regulations, or normal trade practice, or good practice, as the case requires.

8 Use of buildings

In these Regulations any reference to the purpose for which a building is used includes the purpose for which it is proposed to be used.

9 Approved forms

- (1) The Authority may from time to time approve forms for the purposes of these Regulations.
- (2) The Authority must publish any approved form in the Government Gazette.

Part 2—Building Code of Australia

10 Building Code of Australia

The BCA is adopted by and forms part of these Regulations as modified by these Regulations.

11 Use of BCA terms

Subject to the Act and to regulations 5 and 6, words and expressions used in these Regulations have the same meanings as they have in the BCA.

12 Classification of buildings

For the purposes of these Regulations, buildings must be classified as set out in the BCA.

13 Relevant building surveyor must determine the classification of a building

- (1) The relevant building surveyor must determine the classification of a building when performing a function under the Act or these Regulations.
- (2) If there is any doubt as to the classification of a building under the BCA, the relevant building surveyor must classify the building as belonging to the class it most closely resembles.

Part 3—Owner-builders

Division 1—Applications for certificates of consent for owner-builders

14 Applications for certificates of consent

- (1) An application for a certificate of consent to carry out domestic building work on land must be in the form approved by the Authority and contain the information set out in subregulation (2).
- (2) For the purposes of section 25C(2)(a) of the Act, the following information is the prescribed information to be contained in the application—
 - (a) the address of the land on which the domestic building work is to be carried out;
 - (b) the name, address, telephone number and ABN, ACN or ARBN (if applicable) of each owner of the land;
 - (c) if the applicant is not an owner of the land, the name, address, telephone number and ABN, ACN or ARBN (if applicable) of the applicant;
 - (d) a description of the proposed domestic building work;
 - (e) details of the cost of the proposed domestic building work;
 - (f) whether or not a building permit referred to in section 25E(1)(e), (f) or (g) of the Act has been issued in the previous 5 years;
 - (g) the type of work in which the applicant is engaged or intends to engage, and whether it is for profit or gain;

- (h) if the applicant intends to seek an exemption under section 25E(4) of the Act, details of the grounds on which the exemption is sought.

15 Information to accompany application for certificate of consent

For the purposes of section 25C(2)(c)(i) of the Act, an application for a certificate of consent must be accompanied by the following information—

- (a) any evidence or proof of identity of the applicant that is required by the Authority;
- (b) if the land is under the operation of the **Transfer of Land Act 1958**, a copy of the certificate of title for the land dated within 7 days before the date of the application;
- (c) if the land is not under the operation of the **Transfer of Land Act 1958**, any evidence of ownership of the land required by the Authority;
- (d) if the applicant co-owns the land, a written statement from each other owner, stating that the owner authorises the making of the application dated within 28 days before the date of the application.

16 Additional information to accompany application for certificate of consent if land is owned by body corporate

For the purposes of section 25C(2)(c)(i) of the Act, an application for a certificate of consent must be accompanied by the following information in addition to the information required under regulation 15, if the land to which the application relates is owned by a body corporate—

- (a) if the owner is a company incorporated under the Corporations Act, a copy of a record of a current company extract dated within 7 days before the date of the application, from the records maintained by the Australian Securities and Investments Commission continued under the ASIC Act that shows the company name, ABN, ACN, the names of the directors and the address of the company's registered office;
- (b) if the body corporate is not a company incorporated under the Corporations Act, any evidence of incorporation required by the Authority;
- (c) a written authorisation of the body corporate to the making of the application and the carrying out of the domestic building work on the land by the applicant dated within 28 days before the date of the application;
- (d) a description of the nature of the business of the body corporate.

17 Additional information to accompany application for certificate of consent if land is subject to trust

For the purposes of section 25C(2)(c)(i) of the Act, an application for a certificate of consent must be accompanied by the following information, in addition to the information required under regulation 15, if the land to which the application relates is the subject of a trust—

- (a) a certified copy of the trust deed, together with any subsequent amendments, showing the name of the trust, the name of each trustee and the name of each beneficiary and which is certified within 28 days before the date of the application;

- (b) a written authorisation by each trustee of the trust to the making of the application and to the carrying out of the domestic building work by the applicant on the land dated within 28 days before the date of the application;
- (c) a description of the nature of the business of the trust (if any).

Note

It is an offence under section 246 of the Act to make false or misleading statements or provide false or misleading information.

18 Fee for an application for certificate of consent

For the purposes of section 25C(2)(c)(ii) of the Act, the fee for an application for the issue of a certificate of consent is 6·9 fee units.

19 Required knowledge for owner-builders

For the purposes of section 25E(1)(ab) of the Act, the knowledge of the duties and responsibilities of an owner-builder set out in Schedule 2 is prescribed.

Division 2—Certificates of consent

20 Information in certificate of consent

For the purposes of section 25G(1)(a) of the Act, a certificate of consent must contain the following information—

- (a) the date of issue of the certificate;
- (b) a description of the proposed domestic building work to which the certificate relates;
- (c) the address of the land on which the domestic building work to which the certificate relates is to be carried out;

- (d) details of the cost of the proposed domestic building work;
- (e) an identification number of the certificate;
- (f) the name, address, telephone number and ABN, ACN or ARBN (if applicable) of each owner of the land;
- (g) if the applicant is not an owner of the land, the name, address, telephone number and ABN, ACN or ARBN (if applicable) of the applicant;
- (h) if an owner of the land is a body corporate, the names of all the directors of the body corporate;
- (i) if the land is subject to a trust, the name of that trust and the names of all the trustees of that trust.

21 Register of certificates of consent

For the purposes of section 25H(2) of the Act, the register of certificates of consent kept by the Registrar of the Authority must contain the following information in relation to each certificate of consent issued—

- (a) the date of issue of the certificate;
- (b) the identification number of the certificate;
- (c) the address of the land to which the certificate relates;
- (d) the name, address, telephone number and ABN, ACN or ARBN (if applicable) of each owner of the land;
- (e) the description of the proposed domestic building work to be carried out on the land;

- (f) if the applicant for the certificate is not an owner of the land, the name, address, telephone number and ABN, ACN or ARBN (if applicable) of the applicant;
- (g) if an owner of the land is a body corporate, the names of all the directors of the body corporate;
- (h) if the land is subject to a trust, the name of the trust and the names of all the trustees of the trust.

22 Publication of information kept on the register of certificates of consent

- (1) For the purposes of section 25H(3) of the Act, the Authority may publish on the Authority's website the following information that is kept on the register of certificates of consent in relation to each certificate of consent issued—
 - (a) the date of issue of the certificate;
 - (b) the identification number of the certificate;
 - (c) a description of the proposed domestic building work to which the certificate relates;
 - (d) the address of the land on which the domestic building work to which the certificate relates is to be carried out.
- (2) The Authority may publish the information under subregulation (1) relating to a certificate of consent issued in the previous 10 years.

Part 4—Building permits

Division 1—Exemptions

23 Exemptions from building permits

A building permit is not required under the Act for the buildings and building work specified in column 2 of the Table in Schedule 3.

Division 2—Applications for building permits

24 Applications for building permits

- (1) An application for a building permit must be in the form of Form 1.
- (2) For the purposes of clause 1(a) of Schedule 2 to the Act, the prescribed information to be contained in the application is the information set out in Form 1.
- (3) For the purposes of clause 1(b) of Schedule 2 to the Act, the documents to accompany the application are—
 - (a) the documents set out in Form 1 to accompany the application; and
 - (b) subject to regulation 27, the documents required under regulations 25, 26 and 28.
- (4) An application for a building permit must contain sufficient information to show that the proposed building work will comply with the Act and these Regulations.

25 Application for permit to construct or alter building

- (1) An application for a building permit to construct or alter a building must be accompanied by the following—
 - (a) a copy of any planning permit relating to the proposed building work to which the permit application applies;
 - (b) drawings showing the plan at each floor level, elevations, sections, dimensions and the sizes and locations of structural members to a scale of not less than 1:100, together with any details that are necessary to show compliance to a scale of not less than 1:20, or to other approved scales;
 - (c) specifications describing materials and methods to be used in the construction or alteration;
 - (d) allotment plans to a scale of not less than 1:500 or other approved scales, showing the matters set out in subregulation (2);
 - (e) a statement of the use or proposed use of all buildings shown on allotment plans;
 - (f) a copy of any computations or reports necessary to demonstrate that the building and building work will, if constructed in accordance with the computations and reports, comply with the Act and these Regulations;
 - (g) if the application is for a building permit to alter an existing building, copies of drawings and allotment plans that clearly differentiate between the existing building and the proposed building work for which the permit is sought.

- (2) The following matters are to be shown on an allotment plan—
- (a) the boundaries and dimensions of the allotment and any easements that are relevant to the proposed building work;
 - (b) the distance to the nearest intersecting street;
 - (c) the position and dimensions of the proposed building and its relationship to—
 - (i) the boundaries of the allotment; and
 - (ii) any existing building on the allotment; and
 - (iii) any part of a building or land on an adjoining allotment if necessary to show compliance with the Act and these Regulations;
 - (d) the levels of the allotment, floors of the building, street drainage channel and stormwater drain;
 - (e) the layout of drains to the point of discharge on the allotment together with details necessary to show compliance with the Act and these Regulations;
 - (f) the location, dimensions and area of impermeable surfaces covering the allotment if necessary for the purposes of regulation 77;
 - (g) the location and dimensions of car parking spaces for the purposes of regulation 78;
 - (h) the location, dimensions and area of private open space for the purposes of regulation 86.

- (3) An application for a building permit to construct or alter a building must also be accompanied by any additional copies of the documents set out in subregulation (1) that the relevant building surveyor reasonably requires.

26 Application for permit to demolish or remove building

- (1) An application for a building permit to demolish or remove a building must be accompanied by the following—
- (a) a copy of any planning permit relating to the proposed building work to which the permit application applies;
 - (b) an outline and a description of the building or part of the building to be demolished or removed;
 - (c) an allotment plan showing the location of—
 - (i) the building in relation to the boundaries of the allotment and adjoining buildings; and
 - (ii) other buildings on the allotment; and
 - (iii) streets, footpaths or crossings adjoining the allotment;
 - (d) if only a part of the building is to be demolished or removed, computations or other information to show that the remainder of the building will comply with the Act and these Regulations either as it remains after the proposed demolition or removal takes place or after other works are undertaken;
 - (e) information showing the position and description of hoardings, allotment boundaries, barricades, temporary crossings, protective awnings and outriggers;

- (f) a written description of the demolition or removal procedure;
 - (g) evidence that the demolisher has the necessary knowledge, experience, equipment and storage facilities to properly conduct the demolition operations.
- (2) An application for a building permit to demolish or remove a building must also be accompanied by any additional copies of the documents set out in subregulation (1) that the relevant building surveyor reasonably requires.

27 Exemption from application requirements for certain building work

The relevant building surveyor may exempt an application for a building permit in respect of building work from any requirement under regulation 25 or 26 which the relevant building surveyor considers is not required to demonstrate that the building work will comply with the Act and these Regulations.

28 Application for permit where swimming pool or spa proposed

An application for a building permit to construct a swimming pool or spa and any associated safety barrier must include, in addition to other information required under this Part, detailed drawings and specifications of the proposed barrier that—

- (a) clearly show the location of the swimming pool or spa and the barrier on the allotment; and
- (b) demonstrate the barrier's compliance with these Regulations.

29 Additional information to accompany application for permit

The relevant building surveyor may require all or any of the following information to be submitted in relation to an application for a building permit and the allotment to which it relates—

- (a) details of measures for the protection of the public under regulation 116;
- (b) documentary evidence to support the use of a material, form of construction or design in a form referred to in clause A2.2 of the BCA Volume One or clause 1.2.2 of the BCA Volume Two;
- (c) a survey plan of existing site conditions prepared by a licensed surveyor within the meaning of the **Surveying Act 2004**;
- (d) if the allotment is under the operation of the **Transfer of Land Act 1958**, a copy of the certificate of title to the allotment;
- (e) evidence of ownership of the allotment or evidence that a contract has been entered into pursuant to section 9AA of the **Sale of Land Act 1962** in relation to the allotment;
- (f) evidence that each building practitioner to be engaged in, or to carry out, the building work—
 - (i) holds a building practitioner's certificate issued by the Authority under the Act; or
 - (ii) is an architect registered under the **Architects Act 1991** or is an insured architect (as the case requires);

- (g) details as to whether the allotment is—
 - (i) in an area that is liable to flooding within the meaning of regulation 5(2); or
 - (ii) in an area that is designated under regulation 150 as an area in which buildings are likely to be subject to attack by termites; or
 - (iii) in an area designated under regulation 152 as likely to be subject to significant snowfalls; or
 - (iv) in an area that is a designated bushfire prone area as determined under regulation 155; or
 - (v) designated land;
- (h) details as to whether an approved building envelope applies to the allotment or to an adjoining allotment;
- (i) a list of any essential safety measures to be provided in the building or place of public entertainment to which the building permit relates.

Division 3—Report or consent of reporting authorities

30 Prescribed reporting authorities

For the purposes of clause 7(2) of Schedule 2 to the Act, the following are prescribed reporting authorities—

- (a) the chief officer;
- (b) a relevant council;
- (c) a relevant service authority;
- (d) a relevant electricity supply authority.

31 Prescribed matters

For the purposes of clause 7(2) of Schedule 2 to the Act—

- (a) a matter set out in column 2 of the Table in Part 1 of Schedule 5 is a prescribed matter in relation to the chief officer; and
- (b) a matter set out in column 2 of the Table in Part 2 of Schedule 5 is a prescribed matter in relation to the relevant council; and
- (c) a matter set out in column 2 of the Table in Part 3 of Schedule 5 is a prescribed matter in relation to the relevant service authority; and
- (d) a matter set out in column 2 of the Table in Part 4 of Schedule 5 is a prescribed matter in relation to the relevant electricity supply authority.

32 Time limits for application to be given to reporting authority

For the purposes of clause 4(2) of Schedule 2 to the Act, the prescribed time within which the relevant building surveyor must give a copy of an application for a building permit to each reporting authority required to report on or consent to the application is—

- (a) in the case of an application relating to a Class 1 or 10 building, 3 business days after the relevant building surveyor receives the application; or
- (b) in any other case, 5 business days after the relevant building surveyor receives the application.

33 Further time for an applicant to supply a report or consent

For the purposes of clause 5(4) of Schedule 2 to the Act, the further time prescribed for an applicant to supply a report or consent to the relevant building surveyor is—

- (a) in the case of an application relating to a Class 1 or 10 building, 3 months; or
- (b) in any other case, 6 months.

34 Time limits relating to the report or consent of reporting authorities

(1) For the purposes of clause 6(1), (2) and (3) of Schedule 2 to the Act, the prescribed time is—

- (a) in the case of an application relating to a Class 1 or 10 building—
 - (i) for a matter under Division 2 of Part 5 or regulation 89, within 15 business days after a reporting authority is given an application for a building permit by the relevant building surveyor; and
 - (ii) in all other cases, within 10 business days after a reporting authority is given an application for a building permit by the relevant building surveyor; or
- (b) in the case of an application relating to any other class of building—
 - (i) for a matter referred to the chief officer, within 15 business days after the chief officer is given an application for a building permit by the relevant building surveyor; and

- (ii) in all other cases, within 10 business days after a reporting authority is given an application for a building permit by the relevant building surveyor.
- (2) For the purposes of clause 6A(2), (3) and (4) of Schedule 2 to the Act, the prescribed time is 15 business days after the reporting authority receives a copy of the application for the building permit.

35 Time within which relevant building surveyor must decide application for building permit

- (1) For the purposes of section 19 of the Act, the relevant building surveyor must decide an application for a building permit—
 - (a) in the case of a Class 1 or 10 building, within 10 business days after the relevant day; or
 - (b) in any other case, within 15 business days after the relevant day.
- (2) In this regulation the *relevant day* means the earlier of—
 - (a) the day on which all reports and consents required to be supplied by reporting authorities in relation to the application are received by the relevant building surveyor; or
 - (b) the day by which the reports and consents referred to in paragraph (a) must be supplied to the relevant building surveyor.

36 Maximum fees for report and consent

- (1) The maximum fee payable for the consideration by a responsible authority under the **Planning and Environment Act 1987** as a reporting authority of an application for a building permit for demolition of a building referred to the reporting authority

under section 29A of the Act for report and consent is 5·75 fee units.

- (2) The maximum fee payable for the consideration by the relevant council of an application for a building permit referred to it under regulation 132(1) or 134(2) or Part 5, 6 or 10 is 19·61 fee units.
- (3) The maximum fee payable for the consideration by the relevant council of an application for a building permit referred to it under regulation 116(4) for report and consent is 19·9 fee units.
- (4) The maximum fee payable for the consideration by the relevant council of an application for a building permit referred to it under regulation 133(2) for report and consent is 9·77 fee units.

Division 4—Building permits

37 Issue of building permit

- (1) A building permit must be in the form of Form 2.
- (2) A building permit must be signed by the relevant building surveyor.
- (3) The relevant building surveyor must include on the building permit—
 - (a) the commencement date and completion date of the building work; and
 - (b) the mandatory notification stages for inspecting that building work.

38 Building surveyor to document determination of performance solution

The relevant building surveyor must record the following in writing if the relevant building surveyor determines that a performance solution meets a performance requirement of the BCA in relation to proposed building work—

- (a) the performance requirement with which the performance solution complies;
- (b) details of any one or more of the following that the relevant building surveyor uses or relies on in making the determination—
 - (i) the assessment method or methods;
 - (ii) the details of any expert judgement;
 - (iii) the details of any tests or calculations;
 - (iv) the details of any standards or other information.

39 Building surveyor to provide copy of permit

- (1) The relevant building surveyor must within 7 days after issuing a building permit give to the applicant for the building permit—
 - (a) a copy of the permit; and
 - (b) 2 copies of the plans, specifications and other documents (except for computations or reports) lodged with the application (whether or not with amendments) with evidence of approval stamped and endorsed on them.
- (2) The relevant building surveyor must give a copy of a building permit within 7 days after the issue of the permit to—
 - (a) the builder named in the permit; and
 - (b) the owner of the allotment to which the permit relates if the owner did not apply for the permit.

40 Applicant to make documents, permit available

An applicant for a building permit must provide a copy of the permit and one copy of any documents given to the applicant under regulation 39(1)(b) to the builder named in the building permit.

41 Provision and display of permit information

- (1) The builder named in the building permit must ensure that a copy of the building permit and one copy of each document given to the builder under regulation 40 are available for inspection at the allotment while the building work to which the building permit applies is being carried out on that allotment.

Penalty: 10 penalty units.

- (2) The builder named in the building permit must ensure that—
- (a) the following information is displayed on the allotment to which the permit relates in a conspicuous position accessible to the public before the commencement of the building work to which the permit applies (including demolition or removal of a building on the allotment)—
 - (i) the registration numbers and contact details of the builder and the relevant building surveyor;
 - (ii) the building permit number and the date of issue of the permit; and
 - (b) the information referred to in paragraph (a) continues to be displayed and remains visible and legible for the duration of the building work.

Penalty: 10 penalty units.

42 Owner to notify change of owner or builder

An owner of a building or land to which a building permit relates must notify the relevant building surveyor within 14 days after any change in the name or address specified in the permit of the owner or of the builder carrying out the building work.

Penalty: 10 penalty units.

43 Builder to notify change of name or address

A building practitioner registered under Part 11 of the Act who is, or is to be, specified as the builder in a building permit must notify the owner of a building or land to which the building permit relates and the relevant building surveyor within 14 days after any change in the name or address of the building practitioner specified in the permit.

Penalty: 10 penalty units.

Division 5—Duties of building surveyor

44 Documents to be given to council

- (1) The following documents are prescribed for the purposes of section 30(1A) of the Act—
 - (a) a notice given to the relevant building surveyor under section 25A(1) of the Act;
 - (b) a notice given to the relevant building surveyor under section 25A(2) of the Act;
 - (c) a notice given to the relevant building surveyor under section 25A(3) of the Act;
 - (d) a determination made by the relevant building surveyor under regulation 111(2);
 - (e) a notice served on the relevant building surveyor under section 84(1) of the Act;

- (f) a notice given to the relevant building surveyor under section 85(1)(b) of the Act;
- (g) a determination of the relevant building surveyor under section 87(1) of the Act;
- (h) any determination of the Building Appeals Board;
- (i) a report and consent of a reporting authority prescribed under regulation 30;
- (j) a record under regulation 38 of a determination of the relevant building surveyor that a performance solution meets a performance requirement of the BCA;
- (k) a determination of the municipal building surveyor or a private building surveyor exercising the functions of a municipal building surveyor under regulation 64(1);
- (l) a document setting out any requirement of the relevant building surveyor under regulation 116 to take precautions to protect the safety of the public;
- (m) any certificate issued under section 238 of the Act on which the relevant building surveyor has relied together with any record of a building practitioner made under regulation 124(1) that relates to the certificate;
- (n) any exemption from, or consent to partial compliance with, certain requirements of these Regulations relating to a building or building work that has been given by the municipal building surveyor or a private building surveyor exercising the functions of a municipal building surveyor under regulation 229(2) or 231(2) or by the relevant building surveyor under regulation 233(3) or 234(2);

- (o) any document required by the relevant building surveyor under clause 2 of Schedule 2 to the Act;
 - (p) a copy of any permit required for the construction, installation or alteration of a septic tank system issued under section 53M(5) of the **Environment Protection Act 1970** if the building work to which the permit applies involves such construction, installation or alteration.
- (2) The prescribed time for the purposes of section 30(1A) of the Act is 7 days after the issue of the building permit.

45 Lodgement fees

- (1) For the purposes of clause 1(d) of Schedule 2 to the Act, the prescribed lodgement fee for the lodging of documents by the relevant building surveyor under section 30 of the Act is 8·23 fee units.
- (2) Despite subregulation (1), no lodgement fee is payable for lodging documents in relation to an application for a building permit that relates to a class of building referred to in regulation 281.

46 Building permit levies

- (1) For the purposes of section 205J of the Act, if the relevant building surveyor receives an amount of levy under Subdivision 4 of Division 2 of Part 12 of the Act in relation to an application for a building permit, the relevant building surveyor must—
- (a) record the date when the levy is received;
- and

- (b) within 7 days after the end of each month forward to the Authority all amounts of levy received for building permits issued during that month; and
 - (c) within 7 days after the end of each month give to the Authority in a form approved by the Authority the information set out in subregulation (2).
- (2) For the purposes of section 205J(1)(d)(iii) of the Act, in addition to the information set out in section 205J(1)(d)(i) and (ii) of the Act, the following information is required to be given to the Authority in relation to each building permit issued during each month—
- (a) details of the permit, including the building permit number and date of issue of the permit;
 - (b) the address and property details of the allotment to which the permit relates;
 - (c) the name of the owner of that allotment;
 - (d) a description of the building work to which the permit applies;
 - (e) the name and contact details of any builder engaged in the building work;
 - (f) the name and contact details of any draftsperson or architect engaged to prepare documents for the building work;
 - (g) details of any planning permit relating to the building work to which the permit applies;
 - (h) the cost of the building work estimated under section 205I of the Act.

47 Information the relevant building surveyor must give to the Authority

- (1) A relevant building surveyor must within 7 days after the end of each month give to the Authority in a form approved by the Authority—
 - (a) details of all permits and certificates of final inspection issued by the relevant building surveyor during that month; and
 - (b) the following details relating to the building work to which each building permit issued by the relevant building surveyor during that month applies, including—
 - (i) whether any of the building work will be carried out on an allotment in a designated bushfire prone area determined under regulation 155 and the applicable bushfire attack level determined for that allotment;
 - (ii) whether the building work relates to a change of use of a building;
 - (iii) whether the building work involves the construction of a private bushfire shelter.
- (2) In addition to the details under subregulation (1), on and from 1 July 2019, the relevant building surveyor must within 7 days after the end of each month give to the Authority in a form approved by the Authority the following details relating to the building work to which each building permit issued by the relevant building surveyor during that month applies—
 - (a) whether an occupancy permit is required in relation to the building work;
 - (b) the mandatory notification stages for the building work set out under Part 12;

- (c) whether the building work is to be carried out on land that is subject to a determination under regulation 64(1);
 - (d) whether any exemption from, or consent to partial compliance with, certain requirements of these Regulations relating to the building work has been given by the relevant building surveyor under regulation 229(2), 231(2), 233(3) or 234(2);
 - (e) whether the building work involves the construction of a swimming pool or spa or an associated safety barrier;
 - (f) whether the relevant building surveyor determined under regulation 111(2) that protection work is required in relation to the building work.
- (3) The relevant building surveyor must, within 7 days after the end of each month, give to the Authority in a form approved by the Authority the following details in relation to any building permit issued by the relevant building surveyor—
- (a) any lapse of a building permit during that month;
 - (b) details to the knowledge of the relevant building surveyor of any building work to which the permit applies that is commenced, completed or abandoned during that month.
- (4) In addition to the details under subregulation (3), on and from 1 July 2019, the relevant building surveyor must within 7 days after the end of each month give to the Authority in a form approved by the Authority the following details relating to any building permit issued by the relevant building surveyor—

- (a) any extension granted during that month by the relevant building surveyor under regulation 59 to the commencement date or completion date of the building work to which the permit applies and the new dates;
- (b) any inspection of building work to which the permit applies at a mandatory notification stage under section 34 of the Act;
- (c) any determination by the relevant building surveyor that protection work is required in relation to building work to which the permit applies under regulation 111(3).

48 Guarantees and bonds

- (1) The prescribed circumstances for the purposes of section 22 of the Act are the demolition, removal or re-erection of a building.
- (2) For the purposes of section 22(a) and (b) of the Act, the amount of the bond or the amount in respect of which an undertaking and guarantee is given (as the case requires)—
 - (a) in the case of the demolition or removal of a building, must not exceed the lesser of—
 - (i) the estimated cost of building work to which the building permit applies; or
 - (ii) the sum of \$100 for every 1 m² of floor area of the building; and
 - (b) in the case of the re-erection of a building, must not exceed the lesser of—
 - (i) the estimated cost of the building work to which the building permit applies; or
 - (ii) \$10 000.

Division 6—Duties of council

49 Period that documents must be kept

If a council is required to keep documents under the Act or these Regulations or any corresponding previous regulations in relation to building permits and applications for building permits, including documents relating to protection work, the documents must be kept in any manner specified by the Keeper of Public Records until the building is demolished or removed from the allotment.

50 Relevant council to make documents available on request

On the request of an owner or mortgagee of the building or land, or a person authorised in writing by an owner or mortgagee of a building or land, the relevant council must provide the person making the request with a copy of any documents submitted with an application for a building permit in relation to the building or land.

51 Requests for information from relevant council

- (1) Any person may request the relevant council to provide in relation to any building or land—
 - (a) details of any permit or certificate of final inspection issued in the preceding 10 years; and
 - (b) details of any current determination made under regulation 64(1) or exemption granted under regulation 231(2); and
 - (c) details of any current notice or order issued by the relevant building surveyor under the Act.

- (2) Any person may request the relevant council to provide in relation to any building or land details as to whether the building or land is—
- (a) in an area that is liable to flooding within the meaning of regulation 5(2); or
 - (b) in an area that is designated under regulation 150 as an area in which buildings are likely to be subject to attack by termites; or
 - (c) in an area for which a bushfire attack level has been specified in a planning scheme; or
 - (d) is an area designated under regulation 152 as likely to be subject to significant snowfalls; or
 - (e) designated land; or
 - (f) designated works.
- (3) An owner or mortgagee of a building or land, or a prescribed building practitioner reporting on a building under section 137B of the Act, may request the relevant council to provide the approved dates of the inspections carried out of the mandatory notification stages of building work carried out on the building or land.

52 Fees for requests for information

The fee for the provision of information under regulation 51(1), (2) or (3) is 3·19 fee units.

Division 7—Time limits for building work and permits

53 Commencement of work

If a building permit is issued, the building work must commence—

- (a) in the case of the re-erection of a Class 1 or 10 building, within 6 months of the date of issue of the building permit; or
- (b) in any other case, within 12 months of the date of issue of the building permit.

54 Completion of building work

(1) If a building permit is issued, the building work must be completed—

- (a) in the case of a building permit to re-erect a building, within 12 months after the date of issue of the building permit; or
- (b) in the case of a Class 1 or 10 building, within 24 months after the date of issue of the building permit; or
- (c) in the case of a swimming pool or spa or any associated barrier or safety equipment—
 - (i) if the building work is being carried out on an allotment concurrently with other building work that is being carried out on the same allotment, within the period of completion for the other building work referred to in paragraph (a), (b) or (d) (as the case requires); or
 - (ii) in any other case, within 6 months after the building work commences; or
- (d) in any other case, within 36 months of the date of issue of the building permit.

- (2) If building work is to be completed in more than one stage and more than one building permit is issued in relation to that building work, a reference in subregulation (1) to the date of issue of a building permit is taken to be a reference to the date of issue of the first of those building permits.

55 Lapsing of building permit

- (1) A building permit lapses if the building work to which the permit applies has not commenced by the last day of the period within which the work must commence under regulation 53 (the *commencement date*).
- (2) A building permit lapses if the building work to which the permit applies is not completed by the last day of the period within which the work must be completed under regulation 54 (the *completion date*).
- (3) A building permit that has lapsed is no longer in force for the purposes of the Act and these Regulations.

56 Notice of imminent lapse of building permit—commencement of work

If, immediately before 30 days before the commencement date of building work including any extension to that date granted under regulation 59, the relevant building surveyor has not carried out an inspection of the first mandatory notification stage of the work under section 34 of the Act, the relevant building surveyor must, without delay, give a notice in the form of Form 3 to the applicant for the building permit that applies to the building work of the date on which the building permit will lapse under regulation 55.

**57 Notice of imminent lapse of building permit—
completion of work**

If, immediately before 30 days before the completion date of building work including any extension to that date granted under regulation 59, the relevant building surveyor has not carried out an inspection of the final mandatory notification stage of the work under section 34 of the Act, the relevant building surveyor must, without delay, give a notice in the form of Form 4 to the applicant for the building permit that applies to the building work of the date on which the building permit will lapse under regulation 55.

**58 Copy of notice of imminent lapse of building permit
to be provided**

Within 7 days after a notice is issued under regulation 56 or 57, the relevant building surveyor must cause a copy of the notice to be given to—

- (a) the owner, if the applicant for the relevant building permit is not the owner; and
- (b) the builder who is specified as the builder in the building permit subject to the notice of imminent lapse.

59 Extension of building permit

- (1) An application for an extension of the commencement date or the completion date of building work may be made in writing to the relevant building surveyor by the applicant for the building permit applying to the building work.
- (2) An application under subregulation (1) must be made before the commencement date or the completion date (as the case requires).

- (3) The relevant building surveyor may extend the commencement date or completion date of the building work prior to the lapse of a building permit if the relevant building surveyor considers that the extent of the building work warrants an extension.
- (4) If any extension is granted under subregulation (3), the relevant building surveyor must notify the applicant without delay—
 - (a) that the extension has been granted; and
 - (b) the new commencement date or completion date of the building work (as the case requires).

Division 8—Combined allotments

60 Application to treat a combined allotment as one allotment

- (1) An application may be made to the municipal building surveyor of the relevant council to treat a combined allotment as one allotment for the purposes of the Act and these Regulations by the owner, or owners, of the land in the combined allotment.
- (2) An application under subregulation (1) must contain the information set out in regulation 61(1) and be accompanied by the documents set out in regulation 61(2).

61 Information to be contained in or documents to accompany application

- (1) An application under regulation 60(1) must contain—
 - (a) a description of any proposed building work on the combined allotment to which the application applies; and

- (b) a description of any building on the combined allotment to which the application applies; and
 - (c) a description of how any proposed building work described under paragraph (a)—
 - (i) will impact on the structural adequacy of any building on the combined allotment to which the application applies; and
 - (ii) makes reasonable provision for the amenity of any building on the combined allotment to which the application applies; and
 - (iii) makes reasonable provision for the safety and health of people using any building on the combined allotment to which the application applies; and
 - (iv) makes reasonable provision for avoiding the spread of fire to or from any adjoining building on the combined allotment.
- (2) An application under regulation 60(1) must be accompanied by—
- (a) if any land in the combined allotment is under the operation of the **Transfer of Land Act 1958**, a copy of the certificate of title to the land; and
 - (b) if any land in the combined allotment is not under the operation of the **Transfer of Land Act 1958**, any evidence of ownership of the land required by the municipal building surveyor; and

- (c) copies of drawings and allotment plans that clearly differentiate between any existing building on the combined allotment and any proposed building work on the combined allotment to which the application applies.

62 Building surveyor may request more information

The municipal building surveyor may require an applicant under regulation 60(1) to provide additional information or documents within a specified period if the municipal building surveyor considers it is necessary for the purposes of making a determination under regulation 64.

63 Application may be refused if information not provided

- (1) If information or a document required under regulation 62 is not provided within the period specified by the municipal building surveyor, the municipal building surveyor may refuse the application.
- (2) Before refusing an application under subregulation (1), the municipal building surveyor must give the applicant 30 days notice in writing of the municipal building surveyor's intention to refuse the application.

64 Determination to treat a combined allotment as one allotment

- (1) On receiving an application under regulation 60(1), the municipal building surveyor may determine or refuse to determine that a combined allotment can be treated as one allotment for the purposes of the Act and these Regulations.

- (2) In deciding whether to make a determination under subregulation (1), the municipal building surveyor must be satisfied—
 - (a) that the structural adequacy of any building on the combined allotment; and
 - (b) that reasonable provision is made for—
 - (i) the amenity of any building on the combined allotment; and
 - (ii) the safety and health of people using any building on the combined allotment; and
 - (iii) avoiding the spread of fire to or from any adjoining building on the combined allotment.
- (3) A determination under subregulation (1) must be in the form of Form 5.
- (4) The municipal building surveyor, within 7 days after making a determination under subregulation (1), must give a copy of the determination to the applicant.
- (5) The municipal building surveyor, within 7 days after refusing to make a determination under subregulation (1), must notify the applicant of that decision.

65 Effect of determination

Land to which a determination under regulation 64(1) applies is taken to be one allotment for the purposes of the Act and these Regulations.

66 Revocation of determination

- (1) The municipal building surveyor may revoke a determination under regulation 64(1) if there is a change of circumstances that would significantly affect any of the matters referred to in regulation 64(2).
- (2) The municipal building surveyor, within 7 days after revoking a determination under subregulation (1), must give each owner of land in the combined allotment written notice of the revocation.

67 Private building surveyor may exercise functions of municipal building surveyor under this Division

A private building surveyor may exercise the functions of the municipal building surveyor in accordance with this Division in relation to building work for which the private building surveyor has been appointed under Part 6 of the Act to issue a building permit.

Part 5—Siting

Division 1—Introduction

68 Application

- (1) A regulation in this Part does not apply to the construction of a building if—
 - (a) a planning permit is required for the construction of that building; and
 - (b) the relevant planning scheme regulates the same matter as that regulation in relation to the siting of that building.
- (2) Section 188A of the Act applies to applications for building permits to which this Part applies.

Note

Section 11 of the Act addresses the circumstances of where there is an inconsistency between a planning scheme and a building regulation in relation to a siting matter.

69 What is an *existing building*?

In this Part, a reference to an *existing building* (including an *existing dwelling*) on an adjoining allotment is a reference to a building—

- (a) that was in existence in its current completed form before 1 July 1994; or
- (b) for which there is an occupancy permit, a copy of which has been given to the relevant council; or
- (c) for which there is a certificate of final inspection, a copy of which has been given to the relevant council (but only if that part of the building can be occupied without the need for any further certificate of final inspection); or

- (d) that has been completed (but only if the building can be occupied without the need for an occupancy permit or a certificate of final inspection).

70 What is a *single dwelling*?

For the purposes of the definition of *single dwelling* in section 188A(4) of the Act, the specified classes of building are—

- (a) a Class 1 building; and
- (b) any Class 10 building associated with a Class 1 building.

71 Approved building envelope design overrides siting requirement

- (1) A design in relation to a building on an allotment that does not comply with a regulation in this Part is taken to comply with that regulation if—
 - (a) an approved building envelope applies to the allotment; and
 - (b) the approved building envelope deals with the same siting matter as the regulation; and
 - (c) the design of the building is consistent with the approved building envelope in relation to that siting matter.
- (2) If an adjoining allotment is not subject to the same agreement or is not shown on the same certified plan of subdivision, subregulation (1) does not apply to regulations 79, 80, 81, 82, 83, 84, 90, 91, 94, 95 and 96 to the extent that they relate to that adjoining allotment.
- (3) In this regulation—

agreement has the same meaning as in paragraph (b)(i) of the definition of *approved building envelope* in regulation 5(1);

plan of subdivision has the same meaning as in paragraph (b)(ii) of the definition of *approved building envelope* in regulation 5(1).

Division 2—Single Class 1 buildings and associated Class 10a buildings

72 Application of Division

This Division applies to the construction of a single Class 1 building and associated Class 10a buildings on an allotment.

73 Maximum street setback

- (1) A Class 1 building when first constructed must not be set back from the front street alignment more than one-third of the depth of the allotment unless the allotment is equal to or greater than 0.40469 ha.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.
- (3) For the purposes of subregulation (1), if a building is on a battleaxe allotment—
 - (a) a reference to the allotment is taken not to include a driveway that forms part of the battleaxe allotment; and
 - (b) a reference to the front street alignment is taken to be a reference to the common boundary between the battleaxe allotment and the front allotment (excluding the common boundary between any driveway that forms part of the battleaxe allotment and the front allotment).

(4) In this regulation—

battleaxe allotment means—

- (a) an allotment situated behind another allotment that has a street frontage; and
- (b) the allotment has access to the street through a driveway, whether or not the driveway forms part of the allotment;

driveway includes any land related and contiguous to the driveway;

front allotment means an allotment that has a street frontage and that is situated in front of a battleaxe allotment.

74 Minimum street setbacks

(1) If—

- (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and
- (b) a schedule to that zone specifies a setback from a street alignment—

a building on that allotment must be set back from a street alignment not less than the relevant setback specified for the street alignment in the schedule.

- (2) If subregulation (1) does not apply, a building must be set back from a street alignment not less than the distance specified in respect of that alignment in Table 74.

Table 74—Street setbacks

<i>Adjoining development context</i>	<i>Minimum setback from front street alignment</i>	<i>Minimum setback from side street alignment</i>
Existing dwellings on adjoining allotments facing the same street	The average distance of the setbacks of the front walls of the existing buildings on the adjoining allotments facing the front street, or 9 m, whichever is the lesser	Not applicable
Existing dwelling on one adjoining allotment facing the same street and no building on the other adjoining allotment facing the same street	The same distance as the setback of the front wall of the existing building on the adjoining allotment facing the same street, or 9 m, whichever is the lesser	Not applicable
No existing dwellings on adjoining allotments facing the same street	6 m for a building facing a declared road 4 m for a building facing any other street	Not applicable
<u>Corner allotment</u> If there is a building on the adjoining allotment facing the same street	The same distance as the setback of the front wall of the existing building on the adjoining allotment facing the front street, or 9 m, whichever is the lesser	The same distance as the setback of the front wall of the existing building on the adjoining allotment facing the side street or 2 m, whichever is the lesser

<i>Adjoining development context</i>	<i>Minimum setback from front street alignment</i>	<i>Minimum setback from side street alignment</i>
<u>Corner allotment</u>	6 m for a building facing a declared road	2 m
If there is no building on the adjoining allotment facing the same street	4 m for a building facing any other street	

- (3) The following may encroach into the setback distance required by subregulation (1) or (2) by not more than 2·5 m—
- (a) porches, verandahs and pergolas that have a maximum height of less than 3·6 m above natural ground level;
 - (b) eaves, fascia and gutters;
 - (c) sunblinds and shade sails;
 - (d) permanent and fixed screens referred to in regulation 84(5)(d) or 84(6);
 - (e) decks, steps or landings less than 800 mm in height.
- (4) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.
- (5) In this regulation ***street*** does not include lane, footway, alley or right of way.
- (6) For the purposes of this regulation, an allotment does not adjoin another allotment if its boundary only touches the boundary of the other allotment at one point (for example, at a corner).

75 Building height

- (1) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and
 - (b) that zone, or a schedule to that zone, specifies a maximum height for buildings—

the height of a building on that allotment must not exceed the relevant height specified in that zone or schedule (as the case may be).
- (2) If subregulation (1) does not apply, the height of a building must not exceed—
 - (a) 10 m if the slope of the natural ground level at any cross section of the site of the building that is wider than 8 m is 2.5° or more; and
 - (b) 9 m in any other case.
- (3) If a wall is constructed in accordance with regulation 80, and despite regulation 79, any part of a building on the allotment that is within 1 m of a side or rear boundary and that is adjacent to the wall must be constructed so as not to exceed the height formed by a line that connects—
 - (a) any point at the top of the wall; and
 - (b) any point at a height of 3.6 m at a setback of 1 m from the boundary.
- (4) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

76 Site coverage

- (1) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and

- (b) a schedule to that zone specifies a maximum site coverage for buildings—

buildings must not occupy more of the allotment than the site coverage specified in that schedule.

- (2) If subregulation (1) does not apply, buildings must not occupy more than 60% of an allotment.
- (3) The following items may be disregarded when calculating site coverage under subregulation (1) or (2)—
 - (a) not more than 600 mm of the width of eaves, fascia and gutters;
 - (b) unroofed swimming pools or spas, unroofed terraces, unroofed patios, unroofed decks and pergolas.
- (4) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

77 Permeability

- (1) If—

- (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and
- (b) a schedule to that zone specifies that an allotment must have a minimum area of permeable surfaces—

the amount of the allotment that must have a permeable surface must not be less than the minimum area of permeability specified in that schedule.

- (2) If subregulation (1) does not apply, and if a building is to be constructed on an allotment, at least 20% of the area of the allotment must have a permeable surface.

- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

78 Car parking

- (1) If a new Class 1 building is to be constructed on an allotment, provision must be made for 2 car parking spaces on the allotment that are accessible from the street.
- (2) Of the 2 required car parking spaces—
 - (a) the first space must be at least 6 m long and 3·5 m wide; and
 - (b) the second space must be at least 4·9 m long and 2·6 m wide.
- (3) A building may project into a car parking space if it is at least 2·1 m above that space.
- (4) Despite subregulation (2), if the 2 required car parking spaces adjoin each other in a garage or carport or in a space constrained by walls, the total space may be 5·5 m in width.
- (5) An alteration to a building on an allotment must not reduce the number of car parking spaces on the allotment unless there are more than 2 car parking spaces on the allotment, in which case the number of car parking spaces may be reduced to 2.
- (6) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

79 Side and rear setbacks

- (1) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and

- (b) a schedule to that zone in the planning scheme specifies minimum setbacks from side and rear boundaries—

a building on the allotment must be set back from a side or rear boundary not less than the relevant setback specified in that schedule.

- (2) If subregulation (1) does not apply, a building must be set back from a side or rear boundary not less than the distance specified in respect of that boundary in Table 79.

Table 79—Side and rear setbacks

<i>Building height at any point</i>	<i>Minimum setback from side or rear boundary at that point</i>
3·6 m or less	1 m
More than 3·6 m but not more than 6·9 m	1 m plus an additional distance calculated at the rate of 300 mm for every metre of height over 3·6 m
More than 6·9 m	2 m plus an additional distance calculated at the rate of 1 m for every metre of height over 6·9 m

- (3) The following may encroach into the setback distance required by subregulation (1) or (2)—
- (a) landings with an area of not more than 2 m² and less than 1 m in height;
 - (b) unroofed stairways and ramps;
 - (c) pergolas;
 - (d) shade sails;
 - (e) eaves, fascia and gutters, if the encroachment is not more than 600 mm;
 - (f) carports that comply with regulation 80.

- (4) The following may encroach into the setback distance required by subregulation (1) or (2) by not more than 500 mm—
 - (a) porches and verandas;
 - (b) masonry chimneys;
 - (c) sunblinds;
 - (d) permanent and fixed screens referred to in regulation 84(5)(d) or (6);
 - (e) flues, pipes and rainwater heads;
 - (f) domestic fuel tanks and water tanks;
 - (g) heating and cooling equipment and other services.
- (5) This regulation does not apply to a wall that complies with regulation 80.
- (6) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

80 Walls and carports on boundaries

- (1) This regulation applies to the construction of—
 - (a) a wall of a building constructed on or within 200 mm of a side or rear boundary of an allotment; or
 - (b) a carport constructed on or within 1 m of a side or rear boundary of an allotment and which is open on the side facing the boundary or boundaries.
- (2) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and

- (b) a schedule to that zone specifies the maximum length of the wall, or of the carport, or of the wall and carport, or the maximum of any of those lengths combined with the length of any existing wall or carport—

that length must not exceed any such maximum length specified in that schedule.

- (3) If subregulation (2) does not apply, the length of the wall, or of the carport, or of the wall and carport, or any of those lengths combined with the length of any existing wall or carport, must not exceed the greater of the following—
 - (a) the length of any existing wall or carport constructed on an adjoining allotment, which is within 200 mm of the boundary of that allotment, if the proposed construction abuts the existing wall or carport;
 - (b) 10 m plus 25% of the remaining length of the boundary of the adjoining allotment, in any other case.
- (4) The wall or carport must not exceed—
 - (a) an average height of 3.2 m where the average is calculated after excluding any length that is less than 2 m in height; and
 - (b) a maximum height of 3.6 m.
- (5) Despite subregulation (4), if the wall or carport abuts an existing wall or carport it may be constructed to the same height as that wall or carport.
- (6) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

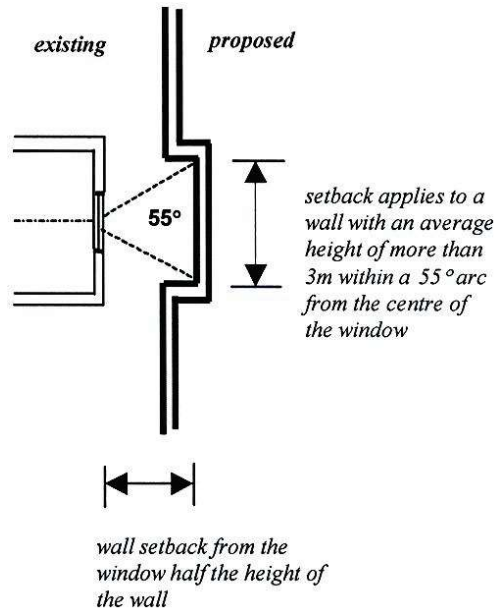
81 Daylight to existing habitable room windows

- (1) A building must be set back from a habitable room window in an existing dwelling on an adjoining allotment to provide for a light court to the window that has a minimum area of 3 m² and a minimum dimension of 1 m clear to the sky.
- (2) The area of the light court required under subregulation (1) may include land on the adjoining allotment.
- (3) A wall or carport with an average height of more than 3 m opposite a habitable room window in an existing dwelling on an adjoining allotment must be set back from that window at least half the height of the wall or carport if the wall or carport is within a 55° angle in the horizontal plane about a vertical axis through the centre of the window.
- (4) For the purposes of subregulation (3), the angle may be swung to not less than 35° from the plane of the wall containing the window.
- (5) If the window referred to in subregulation (3) is above ground floor level, then for the purposes of that subregulation, the wall or carport height is to be measured from the floor level of the room containing the window.
- (6) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

Note

The following diagram illustrates the operation of aspects of regulation 81(3).

Regulation 81: Daylight to existing habitable room windows



82 Solar access to existing north-facing habitable room windows

- (1) This regulation applies if—
- (a) a building is to be constructed on an allotment; and
 - (b) a north-facing habitable room window or part of a window of an existing dwelling on an adjoining allotment is—
 - (i) within 3 m of a boundary of the allotment on which the building is to be constructed; and
 - (ii) oriented towards the boundary; and
 - (iii) will be situated below the eaves or the top of a parapet of the building being constructed.

- (2) The proposed building must be set back from the boundary not less than the distance specified in Table 82 for a distance of 3 m from each side of the window or that part of the window that is within 3 m of the boundary.

Table 82—Setbacks from north-facing habitable room windows

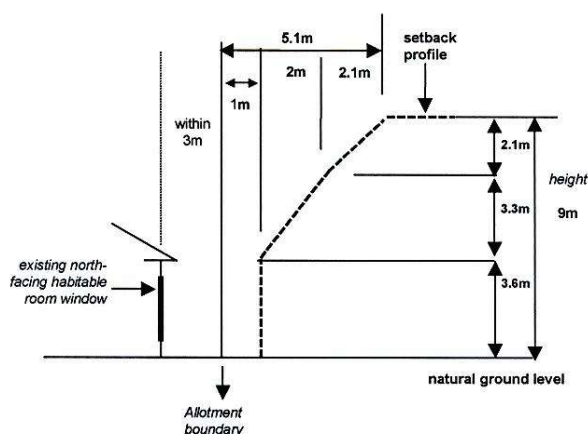
<i>Building height at any point</i>	<i>Minimum setback from side or rear boundary at that point</i>
3·6 m or less	1 m
More than 3·6 m but not more than 6·9 m	1 m plus an additional distance calculated at the rate of 600 mm for every metre of height over 3·6 m
More than 6·9 m	3 m plus an additional distance calculated at the rate of 1 m for every metre of height over 6·9 m

- (3) The following may encroach into the setback distance required by subregulation (2) by not more than 500 mm and to a height not exceeding 2·5 m—
- (a) flues and pipes;
 - (b) domestic fuel tanks and water tanks;
 - (c) heating and cooling equipment and other services.
- (4) A rainwater head may encroach into the setback distance required by subregulation (2) by not more than 500 mm.
- (5) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

Note

The following diagram illustrates the operation of aspects of regulation 82.

Regulation 82: Solar access to existing north-facing habitable room windows



83 Overshadowing of recreational private open space

- (1) A building must not reduce the sunlight to a recreational private open space of an existing dwelling on an adjoining allotment to the extent that less than the required minimum area of the recreational private open space has less than 5 hours of sunlight between 9 a.m. and 3 p.m. on 22 September.
- (2) If a building is to be constructed on an allotment and the existing amount of sunlight to a recreational private open space on an adjoining allotment is less than the amount required under subregulation (1), the amount of sunlight to that area must not be further reduced by the construction of the building.
- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

- (4) In this regulation the ***required minimum area*** of a recreational private open space is the lesser of—
- (a) 75% of the recreational private open space; and
 - (b) 40 m² with a minimum dimension of 3 m.

84 Overlooking

- (1) A habitable room window or raised open space of a building on an allotment must not provide a direct line of sight into a habitable room window or on to a secluded private open space of an existing dwelling on an adjoining allotment.
- (2) In the case of a direct line of sight from a habitable room window, the line of sight is any line measured from a height of 1·7 m above the floor level of the habitable room and contained within the space enclosed by—
 - (a) a vertical plane measured at an angle of 45° from each side of the window; and
 - (b) a horizontal plane 1·7 m above the floor level of the habitable room; and
 - (c) the ground level below; and
 - (d) a horizontal distance of 9 m from the window.
- (3) In the case of a direct line of sight from a raised open space, the line of sight is any line measured from a height of 1·7 m above the floor level and along the perimeter of the raised open space to any point within a horizontal distance of 9 m from the raised open space and extending 45° beyond any point where the perimeter of the raised open space meets a wall of a building.

- (4) In the case of a secluded private open space, the horizontal distance of 9 m referred to in subregulation (2)(d) or (3) is to be measured from the ground level.
- (5) A habitable room window complies with this regulation if—
 - (a) in the case where a habitable room window provides a direct line of sight into a habitable room window of an existing dwelling on an adjoining allotment, it is offset a minimum of 1·5 m from the edge of one window to the edge of the other; or
 - (b) it has a sill height at least 1·7 m above floor level; or
 - (c) it has obscure glazing in any part of the window below 1·7 m above floor level; or
 - (d) the direct line of sight is obscured by a permanent and fixed screen that has no more than 25% of its area open.
- (6) A raised open space complies with this regulation if the direct line of sight into the habitable room window or on to the secluded private open space on the adjoining allotment is obscured by a permanent and fixed screen which has no more than 25% of its area open.
- (7) A window referred to in subregulation (5)(c) may be able to be opened provided that when open the obscure glazing does not permit a direct line of sight on to the secluded private open space or into the habitable room window referred to in subregulation (1).
- (8) This regulation does not apply to a new habitable room window or raised open space that faces a property boundary if—

- (a) there is a visual barrier at least 1·8 m high at the boundary; and
 - (b) the floor level of the room or the raised open space is less than 800 mm above the ground level at the boundary.
- (9) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.
- (10) In this regulation—
- raised open space*** means a landing with an area of more than 2 m², a balcony, a terrace, a deck or a patio;
- secluded private open space*** means any part of private open space on an allotment—
- (a) which is screened for at least 90% of its perimeter by a wall, fence or other barrier that is at least 1·5 m high and that has no more than 25% of its area open; and
 - (b) which is primarily intended for outdoor recreation activities.

85 Daylight to habitable room windows

- (1) A habitable room window of a building on an allotment must face—
- (a) an outdoor space or light court with a minimum area of 3 m² and a minimum dimension of 1 m clear to the sky, not including land on an adjoining allotment; or
 - (b) a verandah, porch, deck or balcony on the allotment if it is open for at least one-third of its perimeter; or

- (c) a carport on the allotment if—
 - (i) it has 2 or more sides open; and
 - (ii) it is open for at least one-third of its perimeter.
- (2) For the purposes of subregulation (1), a side of a carport or verandah may be taken to be open if the roof covering of the carport or verandah adjacent to that side is not less than 500 mm from another building on the allotment or the adjoining allotment boundary.
- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

86 Private open space

- (1) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and
 - (b) a schedule to that zone in the planning scheme specifies a minimum area and dimension for private open space—a Class 1 building on that allotment must have private open space of at least the area and dimension specified in that schedule.
- (2) If subregulation (1) does not apply, a Class 1 building on an allotment must have private open space—
 - (a) of not less than 80 m² or 20% of the area of the allotment, whichever is the lesser; and
 - (b) which includes an area at the side or rear of the building—
 - (i) that is at least 25 m² with a minimum dimension of 3 m; and

- (ii) that has convenient access from a habitable room (other than a bedroom).
- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

Division 3—Siting of Class 10a buildings

87 Siting of Class 10a buildings

- (1) A Class 10a building that is appurtenant to a building of another class must be on the same allotment as the building of the other class unless the Class 10a building is approved under the **Subdivision Act 1988** or any corresponding previous enactments.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit for the construction of a building that does not comply with this regulation.

Division 4—Class 10b structures

88 Application of Division

This Division applies to the construction of Class 10b structures on an allotment.

89 Front fence height

- (1) If—
 - (a) an allotment is in a zone of a planning scheme specified in Schedule 6; and

- (b) a schedule to that zone specifies a maximum height for a fence, or part of a fence, that is within 3 m of the street alignment at the front of an allotment—

the height of a fence, or part of a fence, that is within 3 m of the street alignment at the front of that allotment must not exceed the relevant maximum height specified in that schedule.

- (2) If subregulation (1) does not apply, the height of a fence, or part of a fence, that is within 3 m of the street alignment at the front of an allotment must not exceed the relevant maximum height specified in Table 89.

Table 89—Front fence heights

<i>Street type</i>	<i>Maximum fence height</i>
A declared road	2 m
Any other street	1.5 m

- (3) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

90 Fence setbacks from side and rear boundaries

- (1) A fence exceeding 2 m in height must be set back from a side or rear boundary of an allotment (including a boundary that is a side or rear street alignment) not less than the distance specified in respect of that boundary in Table 90.

Table 90—Side and rear setbacks

<i>Fence height at any point</i>	<i>Minimum setback from side or rear boundary at that point</i>
More than 2·0 m but not more than 3·6 m	1 m
More than 3·6 m but not more than 6·9 m	1 m plus an additional distance calculated at the rate of 300 mm for every metre of height over 3·6 m
More than 6·9 m	2 m plus an additional distance calculated at the rate of 1 m for every metre of height over 6·9 m

- (2) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

91 Fences on or within 150 mm of side or rear boundaries

- (1) Despite regulation 90, one or more fences that are more than 2 m in height may be constructed on, or within 150 mm of, a side or rear boundary of an allotment (other than a boundary that is a side or rear street alignment) if the total length of the fence or fences or that total length combined with the length of any wall, or carport, or wall and carport constructed in accordance with either regulation 80(2) or (3) (as the case requires) on or adjacent to that boundary, does not exceed the greater of the following lengths—
- 10 m plus 25% of the remaining length of the boundary of an adjoining allotment;
 - the length of any wall or carport constructed on an adjoining allotment that is on or within 150 mm of the boundary of that allotment and that abuts those fences.

- (2) A fence constructed on or within 150 mm of a side or rear boundary of an allotment in accordance with this regulation must not exceed—
 - (a) an average height of 3 m; and
 - (b) a maximum height of 3·6 m along the boundary.
- (3) Despite subregulation (2), if a fence abuts an existing wall it may be constructed to the same height as that wall.
- (4) This regulation does not apply to a fence if the fence is provided to comply with regulation 84, or with a planning scheme that regulates the same matter as regulation 84, and—
 - (a) the fence is not more than 2·5 m in height; and
 - (b) the part of the fence between 2·0 m and 2·5 m in height has between 20% and 25% of its area open.
- (5) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.

92 Fences on intersecting street alignments

- (1) Despite regulation 90(1), a fence exceeding a height of 1 m above the footpath must be set back from the point of intersection of street alignments by at least 9 m.
- (2) The report and consent of the relevant council must be obtained to an application for a building permit in relation to a design that does not comply with this regulation.
- (3) In this regulation *street* does not include lane, footway, alley or right of way.

93 Fences must not include barbed wire

- (1) A fence adjacent to a street alignment or public open space must not contain barbed wire or other sharp protrusions unless—
 - (a) despite regulation 90(1), the fence is set back at least 150 mm from the street alignment or boundary of the public open space; or
 - (b) the barbed wire or other sharp protrusion is at a height of at least 2 m above the level of the street or public open space; or
 - (c) the fence is on an allotment that has an area of 2000 m² or more and is used principally for raising livestock.
- (2) In this regulation, *public open space* has the same meaning as in section 3(1) of the **Subdivision Act 1988**.

94 Fences and daylight to habitable room windows in existing dwelling

- (1) A fence more than 2 m in height must be set back from a habitable room window in an existing dwelling on an adjoining allotment to provide for a light court to the window that has a minimum area of 3 m² and a minimum dimension of 1 m clear to the sky.
- (2) The area of the light court required under subregulation (1) may include land on the adjoining allotment.
- (3) A fence with an average height of more than 3 m opposite a habitable room window in an existing dwelling on an adjoining allotment must be set back from that window at least half the height of the fence if the fence is within a 55° angle in the horizontal plane about a vertical axis through the centre of the window.